Sexual Harassment at the Workplace: Analysing the Implementation of the POSH Act, 2013

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Abstract
This paper contains detailed legislation on the issues of sexual harassment at workplace known as the POSH Act. In 2013, the government also enacted the Criminal Law (Amendment) Act, 2013, that penalised various types of sexual harassment. The paper further talks about the recommendations aimed to improve institutional accountability, ensuring a culture of zero tolerance, and delivering access to justice for victims. In doing so, it contributes to the broader discourse on workplace safety, gender equity, and the realization of women's constitutional rights in India.

Keywords: POSH Act 2013, workplace sexual harassment laws, gender equality in India, institutional accountability reforms, women's rights and workplace safety

1. Introduction

In 1992, in Rajasthan there was a Dalit social worker name Bhanwari Devi, who was gang-raped by some upper-caste men as the worker opposed child marriage. Despite the brutality of the offence all the accused were acquitted and they have been given minimal punishment. The state and her employer did not took any responsibility.

Due to public outrage a Public Interest Litigation was filed in the Supreme Court by women's rights activists, that results in the landmark judgment of Vishaka v. State of Rajasthan 1997. The Supreme Court, acknowledged the legal emptiness and issued the Vishaka Guidelines that makes it mandatory for all the employers to protect female employees from sexual harassment.

2. Key Provisions of the Act

I. Sexual Harassment

The definition includes sexual favours, physical advances, sexually colored remarks, showing pornography covering situations that involves promises or threats disturbing employment, interfering with work that harms a woman's dignity and safety.

II. Applicability and Scope

This Act applies throughout India and protects any woman irrespective of their age or employment status facing sexual harassment at a workplace covering both organized and unorganized sectors.

III. Employee

The Act also provides the definition of an 'employee' which include anyone working whether permanent, temporary including persons engaged directly or by an agent covering those working with or without the knowledge of principal employer.

IV. Workplace

This Act further gives a definition of "workplace" that includes both the primary office and any location where the employee worked in the course of employment.

V. Complaints Committee

A. Internal Committee (IC): In Every organization 10 or more employees are required to form an Internal Committee at each office or branch for addressing complaints of sexual harassment. Penalties can be imposed in case of Failure to form this committee.

B. Local Committee (LC): This Act further provided provisions to establish a LC to deal with the complaints of sexual harassment at the workplaces. It has less than 10 employees.

3. Implementation and effectiveness of the Act

Its implementation depends on various industries. Large companies and sectors such IT and corporate they usually comply with the provisions, but in case of insecurity jobs they sometimes discourages reporting. Sectors such as hospitality they also struggles for training and complaints.

4. Other Laws Pertaining to Workplace Sexual Harassment

I. The Industrial Employment (Standing Orders) Act, 1946

It mandates employers to define and publish conditions of employment, which includes work hours, wages, leave, and termination.

II. Indian Penal Code, 1860

The act of Sexual harassment is also considered as an offence under the Indian Penal code. Various sections including 354, 354A, 354B, 354C, 354D, and 509 deals with sexual harassment and provides punishments.

III. Companies Act, 2013

In 2018, the Companies (Accounts) Rules was amended by the Ministry of Corporate Affairs, which requires companies to disclose their compliance with the Act. In case of failure to include this disclosure may results in a fine starting from INR 50,000 to INR 25,00,000, and the officers of the company may face 3 years imprisonment, a fine, or both.

5. The Vishaka Judgement

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been given minimal punishment. The state and her employer did not took any responsibility.

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This horrific incident showing the severe dangers faced by female employee, especially those in vulnerable and ordinary roles, and highlighted the urgent requirement to formally protect women against sexual harassment at the workplace. This landmark pronouncement brought national attention to the prevalent issues of female employees at workplace.

6. Post Vishaka Case laws

I. Apparel Export Promotion Council v. A.K Chopra

In this case the Court made a important development in interpreting sexual harassment by upholding that physical contact was not a essential element for behaviour to establish sexual harassment. It further clarified that sexual harassment involves a broader area of conduct, including unwelcome sexual favours, sexual advances, and other spoken or physical actions with sexual hints whether explicit or implicit.

II. Medha Kotwal Lele & Ors. v. Union of India & Ors

This case recognises the serious concerns brought, the Supreme Court considered the letter as a writ petition taking suo motu cognizance of the matter.

7. Success Stories of the POSH Act's Implementation

I. Corporate Sector – Tata Consultancy Services (TCS)

TCS has effectively executed the POSH Act, it established ICC focusing on gender sensitivity and confidentiality. In many instances, TCS investigated complaints filed by female employee against her senior manage. With strong training and awareness programs it has contributed to build trust in the ICC, ensuring prompt action, transparency, in addressing workplace harassment issues.

II. Educational Sector – Jawaharlal Nehru University (JNU), Delhi

JNU has also applied the Act, safeguarding a strong obligation to gender impartiality. In a case, a complaint was filed by a student against a professor leading to an impartial investigation that resulted in the removal of that professor. JNU's focus on making an inclusive campus environment where students are encouraged to report harassment without fear and hesitation.

III. Government Sector – Indian Railways

Indian Railways has played an important role in implementing the Act. In one such cases, an employee initiated complaint of harassment that led to a fast investigation and punitive action.

8. Challenges in addressing the issue

I. Delays in Investigation

One important challenge is the delay in investigating the complaints of harassment, resulting in lengthy suffering for the victims and weakens the effectiveness of the Act.

II. Lack of Awareness

Another significant issue is the inadequate awareness of the Act in small businesses and the informal sector, including lack of strong policies, sufficient training, and infrastructure to deal with such complaints that led to the destruction of the grievance, and also leaving the worker without any remedy.

III. Ineffectiveness of ICCs in Public Sector Institutions

Due delays and inefficiencies within public sector organizations, it leads to complex and lengthy procedures, preventing prompt justice for victims.

IV. Retaliation and Social Stigma

Further the social and cultural biases and the fear of stigma within some workplaces can prevent women from initiating complaints despite legal mechanisms in place. Even when effective procedures exist, the original social dynamics can often defeat the implementation of the Act.

V. Inadequate Training and Awareness

Another significant challenge in implementing the Act effectively is the lack of proper training for both employees and management. Many employees are not aware of their rights and the procedures laid down in the Act. The members of the Internal Complaints Committees also may not have the essential skills for handling such sensitive cases effectively.

9. Loopholes

I. Ambiguities in the Definition of Sexual Harassment:

One of the main loopholes in the Act is the vague and inadequate definition of sexual harassment. A more clear definition is required to reduce the chances of misunderstanding and ensure consistency in implementation.

II. Inadequate Coverage of Non-Traditional Workspaces:

Another loopholes is the Act mainly focuses on outdated office environments, ignoring the growing number of updated workspaces, including remote work setups etc. As the form of work continues to change, the Act has to address these new work environments more efficiently and cover protections to persons working outside of the office settings.

III. Insufficient Provision for Third-Party Harassment:
One significant loopholes of this Act is that the Act holds employers responsible for stopping and addressing sexual harassment. But the Act does not mentioned anywhere such instances where harassment can be committed by third parties also, including clients, customers, or vendors. Therefore the Act needs to cover the broad range to include provisions that hold third parties liable and accountable for harassment which occurs in the workplace.

10. Suggestions and Recommendations

I. Expanding the Definition of Harassment to Include Digital Forms

A vital step in updating the Act is clearly recognizing various instances of digital harassment including online stalking, cyberbullying, and inappropriate behaviour in virtual spaces that can arise by social media, emails, video meetings and text messages. Therefore the Act must explicitly define virtual misconduct, safeguarding the forms of harassment are dealt with the same gravity as physical cases.

II. Establishing Clear Guidelines for Digital Communication

For preventing virtual harassment, organizations should incorporate explicit policies for virtual interactions. Companies must provide framework as to what is to be considered as inappropriate digital behaviour. Moreover, precise codes of conduct should be laid down in case of video conferencing, internal chat platforms and email communication that will help employees to understand the limitations of professional and respectful behaviour.

III. Strengthening Reporting Mechanisms for Virtual Harassment

Furthermore the Act should lay down convenient and safe reporting systems for those digital harassment. Employers must add online complaint portals within its management systems, to allow employees to make complaints of virtual misconduct without any hassle. Additionally for the encouragement of reporting, these platforms should ensure secrecy, privacy, and protection against retribution that will foster a safer and apparent workplace culture.

11. Conclusion

From the above discussion we understood that this Act marks a noteworthy step in dealing with the issues of sexual harassment at workplace in India. Increasing awareness and training programs can help to cover all workplaces irrespective of its size or location. Likewise, proper legal mechanisms and quick resolve of complaints are important in building trust in the workplace. Thus the Act is considered as an important instrument to protect the rights of employees. Furthermore its achievement is subject to constant cooperation between

employees and the concerned management in ensuring a truly protected and comprehensive work environment.

12. Bibliography

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